

23VECV03387 23VECV03387

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Case Number: 23VECV03387 Hearing Date: September 15, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

HUA MA,

Plaintiff,

vs.

THIEN

KIM HUYNH NGUYEN, aka KIM HUYNH, PHUC T. HUYNH,

Defendants.

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CASE NO.: 23VECV03387

ORDER

DENYING DEFENDANTS' MOTIONS TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

I.

BACKGROUND

Hua Ma ("Plaintiff")

filed this breach of contract and fraud action against Thien Kim Huynh Nguyen, aka Kim Huynh ("Kim") and Phuc. T Huynh ("Phuc") (jointly, "Defendants"). Plaintiff alleges she had agreements with Defendants wherein she agreed to lend them money and they would repay the amounts with interest.

Defendants move to set aside default and default judgment.

II.

PROCEDURAL

HISTORY

On August 2, 2023, Plaintiff filed a Complaint alleging (1) Breach of Contract, (2) Fraud, (3) Breach of Contract, (4) Fraud, (5) Breach of Contract, (6) Fraud, (7) Breach of Contract, (8) Fraud, (9) Breach of Contract, (10) Fraud, (11) Breach

of Contract, (12) Fraud, (13) Breach of Contract, (14) Fraud, (15) Breach of Contract, and (16) Fraud.

On May 21,
2024, the clerk entered default against Defendants.

On April 27,
2026, the Court entered judgment against Defendants.

On August 3,
2026, Defendants filed the instant Motions.

On August 25
and August 26, 2026, Plaintiff filed her Oppositions.

On September
1, 2026, Kim filed a Reply.

On September
8, 2026, Phuc filed a Reply.

III.

LEGAL STANDARD

A.

Lack of Actual Notice – Code of Civil
Procedure § 473.5

Code of Civil

Procedure § 473.5 permits the Court to vacate a default when
service of a summons has not resulted in actual notice to a party in time to
defend the action and a default or default judgment has been entered against
him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall
be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years
after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or
default
judgment has been entered.” (Id.)

The phrase
actual notice means genuine knowledge and does not include constructive or

imputed notice to the client. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.) "A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service." (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, "the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc. § 473.5(b).) It is well established the court is "not required to accept...self-serving evidence contradicting the process server's declaration." (*Rodriguez v. Nam Min Cho* (2015) 236 Cal.App.4th 742, 751.)

B.

Equitable Relief

Apart from any statutory authority, a court has inherent, equitable power to set aside a judgment for extrinsic fraud or mistake. (*Bae*, 245 Cal.App.4th at 97.)

Extrinsic mistake

occurs when a mistake "extrinsic to the litigation... 'led a court to do what it never intended...' [Citation.]" (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) Extrinsic fraud occurs when, "a party is denied a fair adversary hearing because he has been 'deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.' [Citation.]" (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) To obtain equitable relief for a judgement based on extrinsic mistake or fraud, the defaulting party must demonstrate: (1) a meritorious defense; (2) a satisfactory excuse for not defending the original action; and (3) diligence in seeking to set aside the default once the default was discovered. (See *Rappleyea*, 8 Cal.4th at 884 [the Court did not determine whether this test applies to requests for equitable relief when a default judgment has not been entered].) "Prejudice to a plaintiff is obviously less if judgment has not been entered when a defendant seeks equitable relief." (Id. at 984.)

IV.

ANALYSIS

A.

Judicial Notice

Defendants

request judicial notice of the documents in this action's docket. The Court grants the request.

B.

Kim's Motion to Set Aside is Denied.

Kim argues the

default and default judgment entered against her should be set aside because she did not receive actual notice of this action. (See Mot. at 5:11-15, Reply at 2:18-22.) Kim argues (1) the proof of service indicates "Thien Kim Nguyen, aka Kim Huynh" was served which is a name that does not match the name on the Complaint; (2) the proof of service shows "Thien Kim Nguyen – Wife" was served which is a name that is incorrect; (3) the request for entry of default is defective because it was purportedly mailed on April 10, 2014, which is incorrect and does not comply with Code of Civil Procedure § 587; and (4) none of the minute orders were served on her. (See Mot. at 3:8-17.) Kim also argues equitable relief from judgment is warranted based on this same evidence. (See Mot. at 7:28-8:3.)

Kim attests "I

was not served with the summons and complaint on August 18, 2023, or on any other date, and I did not receive notice of the summons and complaint or this lawsuit prior to the issuance of the Abstract of Judgment on July 10, 2026." (Declaration of Thieu Kim Huynh Nguyen filed August 3, 2026 ("Kim Decl."), ¶ 3.) Kim also attests "I was not served with...the request for entry of default, or the request for court judgment, or the multiple notices of ruling as ordered by the multiple minute orders, or learn of this action or the Amended Judgment until after the Court issued the Abstract of Judgment." (Id., at 16.)

In

opposition, Plaintiff argues Kim provides no evidence she lacked actual notice of this action aside from her self-serving declaration. (See Opp. at 4:1-6.) Plaintiff argues a process server served both Defendants. (See id., at 2:19-24.) Plaintiff explains the request for entry of default for each Defendant contains a typographical error on the date, as it states it was

mailed April 10, 2014, instead of 2024. (See *id.*, at 3:3-18, Exs. C-D.)

Plaintiff argues both forms were mailed to Defendants. (See *id.*)

Plaintiff argues the request for entry of default judgment and a memorandum of costs was mailed to Defendants on July 28, 2025, and September 5, 2024. (See *id.*, Exs. E-F.) Plaintiff also argues the Motion is untimely because it was filed more than two years after entry of default. (See *id.*, at 5:8-10.)

The Court

finds insufficient evidence to set aside default and default judgment based on lack of actual notice. First, the Motion is timely as it was filed within two years after entry of default judgment on

April 27, 2026. The 180-day clock under Code of Civil Procedure § 473.5(a) was not triggered as there is no evidence Plaintiff served Kim with written notice of entry of default. Second, the name on the proof of service filed August 29, 2023, Thien Kim Nguyen, aka Kim Huynh, matches the name on the Complaint, Thien Kim Huynh Nguyen, aka Kim Huynh. Third, once a default is entered, the defendant is no longer an active party in the litigation and is not entitled to notice of court hearings or proceedings. (See Code of Civ. Proc. § 1010 [no “notice or paper, other than amendments to the pleadings, or amended pleading, need be served”.] Thus, that Kim was not served with the minute orders after default was entered against her is not grounds for setting aside default.

Fourth, although

the affidavit of mailing on judicial council form CIV-100 requesting entry of default against Kim states the incorrect year, based on the evidence before the Court, this does not necessarily constitute grounds for setting aside default judgment. (See CIV-100 filed May 21, 2024.) Noncompliance with the affidavit requirement does not support setting aside a default or default judgment absent a suitable showing of prejudice. (See *Bae v T.D. Serv. Co. of Az.* (2016) 245 Cal.App.4th 89, 107 [sufficient showing of prejudice]; *Rodriguez v. Henard* (2009) 174 Cal.App.4th 529 [“requirement of an affidavit of mailing under section 587 is not jurisdictional, and hence the failure to file one does not deprive the trial court of jurisdiction to render judgment.”].) An absent or defective affidavit of mailing is prejudicial when the defendant can credibly claim the request for entry of default would have been received if the plaintiff had, in fact, mailed the request to the defendant's address, of which the plaintiff had knowledge. (See *Murray & Murray v Raissi Real Estate Dev., LLC* (2015) 233 Cal.App.4th 379, 386–388.) Any error as to the mailing of the affidavit, e.g., including an incorrect zip code or date of mailing, is not prejudicial when the defendant had knowledge of the default

proceedings. (See Rodriguez, 174 CA4th at 536 (incorrect zip code did not make default judgment void); Taylor v Varga (1995) 37 CA4th 750, 759–760 (request for entry of default containing incorrect date of mailing did not make default judgment void because defendant acknowledged receiving request before actual entry of default), disapproved on other grounds in K.J. v Los Angeles Unified Sch. Dist. (2020) 8 C5th 875, 888 n6.)

Here, Kim merely attests she did not receive the request for entry of default. (See Kim Decl., ¶¶ 4, 15-16.) She does not attest to any other facts supporting her self-serving statement. Kim does not attest she did not reside or receive mail at the address where the request was mailed to, or other facts explaining why she would not have received the request at the address it was purportedly mailed to. Thus, Kim does not show the defective affidavit of mailing is prejudicial as she has not credibly shown that she did not receive the request in the first instance.

Fifth, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption of valid service. (See American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; see also Evid. Code § 647.) The party seeking to defeat service of process must present sufficient evidence to show that the service did not take place as stated. (See Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428.) Merely denying service took place without more is insufficient to overcome the presumption. (See *id.*, at 1428; Bonzer v. City of Huntington Park (1993) 20 Cal.App.4th 1474, 1481, 25 Cal.Rptr.2d 278 [upon credible evidence that document was never received, presumption of receipt from mailing “ceased to exist”].) Here, Kim merely attests she did not receive notice of this lawsuit and was not served with the summons and complaint on August 18, 2023, or on any other date. (See Kim Decl., ¶¶ 3, 15-16.) This evidence, without more, is insufficient to overcome the presumption established by the registered process server’s declaration that Thien Kim Nguyen was served on August 18, 2023. (See Proof of Service filed August 29, 2023.)

Thus, the record shows Plaintiff served Kim with the summons and Complaint and the request for entry of default. (See Sporn v. Home Depot USA, Inc. (2005)

126 Cal.App.4th 1294 ["Examples of extrinsic fraud are: ... failure to give notice of the action to the other party...The essence of extrinsic fraud is one party's preventing the other from having his day in court."] Accordingly, the Court finds Kim's evidence does not show lack of actual notice or extrinsic fraud. Moreover, Kim's affidavit does not attest that her lack of actual notice in time to defend the action was not caused by her avoidance of service or inexcusable neglect. (See Code Civ. Proc. § 473.5(b).) Thus, Kim hasn't shown she is entitled to set aside default and default judgment based on lack of actual notice or on equitable grounds.

Accordingly,
the Court DENIES Kim's Motion to Set Aside Default and Default Judgment.

C.

Phuc's Motion to Set Aside is Denied.

Phuc argues the default and default judgment entered against him should be set aside because he did not receive actual notice of this action. (See Mot. at 5:11-15, Reply at 2:17-21.) Phuc argues (1) he did not receive service of the summons and Complaint; (2) the request for entry of default is defective because it was purportedly mailed on April 10, 2014, which is incorrect and does not comply with Code of Civil Procedure § 587; and (3) none of the minute orders were served on him. (See Mot. at 3:8-17.) Phuc also argues equitable relief from judgment is warranted based on this same evidence. (See Mot. at 7:26-28.)

Phuc attests "he was not served with the summons and complaint on August 19, 2023, or on any other date, or by mail... No one by the name 'Annie' resided at the residence where she was purportedly served." (Declaration of Phuc T. Huynh filed August 3, 2026, ¶ 3.)

The Court incorporates Plaintiff's arguments set forth in her opposition to Kim's Motion here, as they are the same.

Likewise, the Court incorporates its analysis concerning the defective declaration of mailing on the request for entry of default and lack of service of minute orders from above here.

Here, the
proof of service shows substitute service was effected on "Annie (Doe) – Co-Occupant".
(See Proof of Service filed August 29, 2023.) The Court finds Phuc's
mere denial that no one named Annie resided at the service address is
insufficient to overcome the presumption established by the registered process
server's declaration that this individual was served on August 19, 2023. There
is no other evidence corroborating this denial. Thus, the record shows Phuc was
served with the summons and complaint by substitute service. Accordingly, the
Court finds none of the evidence indicates lack of actual notice or extrinsic
fraud. Moreover, Phuc's affidavit does not attest his lack of actual notice in
time to defend the action was not caused by his avoidance of service or
inexcusable neglect. (See Code Civ. Proc. § 473.5(b).) Thus, Phuc
has not shown he is entitled to set aside default and default judgment based on
lack of actual notice or on equitable grounds.

Accordingly,
the Court DENIES Phuc's Motion to Set Aside Default and Default Judgment.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Defendants' Motions to Set Aside Default and
Default Judgment.

IT
IS SO ORDERED.

DATED: September 15, 2026

Hon. Michael R. Amerian

Judge,
Superior Court